Zimbabwe

Chamber of Mines of Zimbabwe Incorporation (Private) Act

Chapter 21:02

Legislation as at 31 December 2016

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Chamber of Mines of Zimbabwe Incorporation (Private) Act (Chapter 21:02)
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Chamber of Mines of Zimbabwe Incorporation (Private) Act
Chapter 21:02

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[Note: This version of the Act was revised and consolidated by the Law Development Commission of Zimbabwe. This version is up-to-date as at 31st December 2016.]

AN ACT to provide for the incorporation of the Chamber of Mines of Zimbabwe, and for the dissolution of the Rhodesia Chamber of Mines and of the Chamber of Mines, Salisbury.

WHEREAS there exists an Association of persons and Joint Stock Companies with offices in Bulawayo called and known as The Rhodesia Chamber of Mines, constituted by the Rhodesia Chamber of Mines Incorporation Act *[Chapter 199 of 1939]*, and formed for the purpose of promoting, encouraging, protecting and fostering the mining industry of Southern Rhodesia;

AND WHEREAS there exists an Association of persons and Joint Stock Companies with offices in Salisbury called and known as The Chamber of Mines, Salisbury, constituted by the Chamber of Mines, Salisbury, Incorporation Act *[Chapter 200 of 1939]*, and formed for the purpose of promoting, encouraging, protecting and fostering the mining industries of the territories under the Government of the British South Africa Company, and the interests of all persons connected therewith;

AND WHEREAS the members of the Rhodesia Chamber of Mines and of the Chamber of Mines, Salisbury, have agreed to dissolve such Associations, and the respective members thereof have agreed to form one Association for the purpose of promoting, encouraging, protecting and fostering the mining industry of Southern Rhodesia, Northern Rhodesia and Nyasaland;

AND WHEREAS in order to form one Association it is expedient to dissolve the Rhodesia Chamber of Mines and the Chamber of Mines, Salisbury, and to incorporate an Association known and to be styled the Chamber of Mines of Zimbabwe in order the better and more effectively to carry out such objects:

BE IT ENACTED:—

1. Short title

This Act may be cited as the Chamber of Mines of Zimbabwe Incorporation (Private) Act *[Chapter 21:02]*.

2. Liquidation of existing Chambers of Mines

The assets of the Rhodesia Chamber of Mines and the Chamber of Mines, Salisbury, shall each be liquidated and their liabilities paid by a liquidator for each Chamber and such liquidators shall be appointed by the respective majorities of the persons who are members of the said Chambers at the 30th June, 1939, and shall dispose of the residue of such assets in such manner as the said respective majorities decide.

3. Incorporation of the Chamber of Mines of Zimbabwe

The several persons and Joint Stock Companies who are members of the Association called the Rhodesia Chamber of Mines, and those persons and Joint Stock Companies who are members of the Association called the Chamber of Mines, Salisbury, shall be and are hereby united into one body corporate under the name and title of the Chamber of Mines of Zimbabwe, for the purpose of promoting, encouraging,

protecting and fostering the mining industry of Zimbabwe and doing everything necessary and advisable for these objects, and the Chamber hereby incorporated shall, by the name and title of the Chamber of Mines of Zimbabwe, have perpetual succession in law and shall have a common seal, and shall have its offices in Harare, and such subsidiary offices in such other towns as may be established at the discretion of the Executive Committee of the said Chamber.

4. Service of process

The said Chamber may, in its corporate name, sue and be sued in any competent court, and service on the Chamber of all legal processes shall be effected by service on the secretary at the offices of the Chamber or upon the person in charge of a subsidiary office.

5. Rights as to property

The said Chamber may in its corporate name acquire, take, hire, purchase and hold, and sell, lease, deliver, transfer or otherwise lawfully dispose of immovable or other property.

6. Execution of documents on behalf of Chamber

All transfers, leases, powers to transfer, contracts, powers to sue or defend, or any other instruments to be executed by the said Chamber for any of the purposes of this Act, or of the rules and regulations made under this Act, or of the said Chamber, shall be executed by the President, or in his absence by the Vice-President, and the signature of the secretary and the seal of the Chamber shall be affixed thereto.

7. Criminal and other legal proceedings

In any criminal or other legal proceedings whatsoever, it shall be sufficient if any goods or other things the property of the Chamber of Mines of Zimbabwe which shall or may be set out in any indictment or other process shall be described and said to be the property of the Chamber of Mines of Zimbabwe, and the Chamber shall be described therein by its corporate name.

8. Liability of members

The liability of members of the said Chamber is limited to their annual subscriptions to the Chamber.

9. Dissolution of existing Chambers of Mines

The Association called and known as the Rhodesia Chamber of Mines, constituted by the Rhodesia Chamber of Mines Incorporation Act *[Chapter 199 of 1939]* and the Association called and known as the Chamber of Mines, Salisbury, constituted by the Chamber of Mines, Salisbury, Incorporation Act *[Chapter 200 of 1939]* are hereby dissolved.

10. Rules and regulations

The said Chamber hereby created shall have power from time to time to make, alter and rescind rules and regulations as to the admission and expulsion of its members, for the manner of and procedure in the election from time to time of its officers and Executive Committee, for the general management and guidance of the said Chamber and the furtherance of its objects and for the liquidation of its assets.

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